

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

FREDERICK THOMPSON AND LATIFA JOHNSON,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD POLICE OFFICER
JOSEPH ROSARIO, SHIELD NO. 18387 and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,Plaintiff designates Kings
County as the place of trial.

Defendants.

----- X

To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 5, 2022

Yours, etc.

C. Cass Luskin

C. Cass Luskin, Esq.

Shulman-Hill, PLLC

Attorneys for Plaintiff

1 State Street Plaza

15th Floor

New York, New York 10004

(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER JOSEPH ROSARIO, 67th PCT, 2820 Snyder Avenue, Brooklyn, New York
11226

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

FREDERICK THOMPSON AND LATIFA JOHNSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
JOSEPH ROSARIO, SHIELD NO. 18387 and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Defendants.

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

----- X

Plaintiff FREDERICK THOMPSON and LATIFA JOHNSON, by their attorneys,
Shulman-Hill, PLLC, as and for his Verified Complaint herein, alleges upon information and
belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On August 24, 2021, at approximately 1:00 p.m., Plaintiff Frederick Thompson, while lawfully in the vicinity of 322 East 94th Street, County of Kings, New York, was subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant Police Officers. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Frederick Thompson is a resident of the state of New York.
3. Plaintiff Latifa Johnson is a resident of the state of New York.

4. NYPD Police Officer Joseph Rosario, Shield No. 2820 is and was at all times relevant herein an Officer with the New York City Police Department.
5. NYPD Police Officer Joseph Rosario, Shield No. 2820 is being sued in their individual and official capacity.
6. Currently and at all times relevant herein, NYPD Police Officer Joseph Rosario, Shield No. 2820 was assigned to the 67th Police Precinct of the NYPD.
7. NYPD Police Officers John Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
8. NYPD Police Officers John Does Numbers One Through Ten are being sued in their individual and official capacities.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiffs in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.
12. In accordance with New York State law and General Municipal Law Section 50, Plaintiff Thompson testified at a hearing held pursuant to General Municipal Law Section 50-H on June 15, 2022 and Plaintiff Johnson testified on June 13, 2022.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.
14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On August 24, 2021, at approximately 1:00 p.m., Plaintiffs were present in the vicinity of 322 East 94th Street, County of Kings, New York, when the defendant Police Officers unlawfully arrested Plaintiffs without legal justification.

17. Earlier in the day on August 24, 2021, Plaintiffs went to the 67th precinct to report an individual named Michael Smith who was stealing packages.

18. Plaintiff Thompson stayed in the vehicle parked outside the precinct to avoid a traffic ticket while Plaintiff Johnson went inside the Precinct.

19. Plaintiff Johnson provided the precinct with photos of Michael Smith's thievery captured on surveillance cameras and pleaded with the Officers to do something about this "porch pirate" that has been terrorizing the neighborhood.

Plaintiff Frederick Thompson

20. Upon their return home, Plaintiff Thompson encountered Michael Smith on the porch stealing more packages.

21. Michael Smith jumped off his Citi Nike and pulled out a razor.

22. When Plaintiff Thompson asked, "What are you going to do with that," Michael Smith ran.

23. Plaintiff Thompson went inside the aforementioned location to change his clothing.

24. While he was in his room, Plaintiff Thompson heard Defendant Officer's ask Plaintiff Johnson, "Where he at?"

25. Plaintiff Thompson exited the apartment and entered the daycare to investigate the situation and was confronted by four Defendant Officers.

26. Despite Plaintiff Thompson's repeated pleas for information, none of the Defendant Officers told him that he was being arrested, what he was being arrested for, or where he was being taken.

27. Plaintiff Thompson was grabbed, handcuffed, and thrown into a police vehicle surrounded by twelve Defendant Officers.

28. Plaintiff Thompson remained inside the police vehicle for approximately thirty minutes before he was transported to the 67th precinct.

29. Upon arrival at the precinct, Plaintiff Thompson was processed and placed in a cell for forty-five minutes before being taken to an interrogation room.
30. While Plaintiff Thompson was in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.
31. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that Plaintiff Thompson was engaged in Robbery in the Second Degree, and other related charges.
32. Plaintiff Thompson was handcuffed and interrogated by seven Defendant Detectives for approximately 30 minutes.
33. Plaintiff Thompson explained to the Defendant Officers that he was just at the precinct earlier that day to report Michael Smith for stealing packages, showed them still shots of video surveillance of the package thefts, and told them the Officers could easily watch the surveillance of this incident to see that he did not commit any crime whatsoever.
34. Plaintiff Thompson was placed back into the cell for approximately four hours before being transferred to Central Bookings.
35. At Central Bookings, Plaintiff Thompson was placed in a crowded cell with approximately seven people.
36. Plaintiff Thompson was moved from crowded cell to crowded cell three times before appearing before the judge.
37. Based on the Defendants false allegations, and there refusal to view or include the exculpatory video surveillance and other evidence, a Judge set bail on Plaintiff Thompson in the amount of ten thousand dollars.
38. Plaintiff Thompson remained on Rikers Island until he made bail on August, 26, 2021.
39. Plaintiff Thompson appeared for approximately twelve court appearances before his criminal case was dismissed and sealed on or about February 2, 2022.
40. Plaintiff Thompson experienced an exorbitant amount of stress as a result of this incident and related court appearances.
41. Plaintiff Thompson missed work to attend court and to testify before a Grand Jury. Plaintiff Thompson also missed approximately four days of work due to his arrest and detention.
42. As a result of his arrest, Plaintiff Thompson missed a family BBQ. Plaintiff Thompson was unable to see his sister who travelled up from the South to visit.

43. Plaintiff Thompson's therapist and counselor have assisted him with overcoming the trauma from the arrest and subsequent court proceedings.
44. Plaintiff Thompson receives treatment from a therapist twice a month.
45. Plaintiff Thompson speaks to his counselor on the telephone every other day and in person once a week.
46. At no time relevant herein did Plaintiff Thompson commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff Thompson of committing a crime or violating the law in any way.
47. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff Thompson or from a location that was in Plaintiff Thompson's possession, custody, or control.
48. Nevertheless, Plaintiff Thompson was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.
49. Some of the police officer defendants observed the violation of Plaintiff Thompson's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff Thompson.
50. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

Plaintiff Latifa Johnson

51. Plaintiff Johnson was taking care of children under her charge within the daycare when she heard a loud knock on the door.
52. Plaintiff Johnson opened the door and was confronted by four Defendant Officers.
53. Defendant Officer grabbed Plaintiff Johnson by the wrist, pulled her out of the daycare, and handcuffed her.
54. Approximately eleven Defendant Officers and three marked police vehicles surrounded the building.
55. Defendant Officer pulled Plaintiff Johnson over to a vehicle and handed her over to a female Defendant Officer.
56. Plaintiff Johnson pleaded with the female Defendant Officer to give her house key's to her youngest son.

57. The female Defendant Officer called a Defendant Sergeant over and handed the key's to the Defendant Sergeant.
58. Despite Plaintiff Johnson's repeated pleas for information, none of the Defendant Officers told her that she was being arrested, what she was being arrested for, or where she was being taken.
59. Defendant Officers placed Plaintiff Johnson inside a vehicle without air conditioning for approximately fifteen minutes.
60. While Plaintiff Johnson was seated inside the vehicle, additional police vehicles arrived on scene.
61. Plaintiff Johnson was eventually transported to the 67th precinct where she was processed and placed into a cell.
62. While in the cell, Plaintiff Johnson requested sanitary napkins and was eventually given toilet paper.
63. Plaintiff Johnson also asked to place a phone call which she was not allowed to do until the Defendant Officers changed shifts.
64. Plaintiff Johnson called her youngest son and asked him to contact his grandmother
65. Plaintiff Johnson informed Defendant Officers that she needed her medication.
66. When Plaintiff Johnson's mother and son came to the precinct with the medication, Defendant Officers would not allow the medication to be given to Plaintiff Johnson.
67. Defendant Officers transported Plaintiff Johnson to an interrogation room where she was interrogated by approximately six Defendant Detectives.
68. Plaintiff Johnson was interrogated for approximately an hour about the complaint she made against Michael Smith.
69. Defendant Detectives informed Plaintiff about the charges against her.
70. Later a Defendant Officer informed Plaintiff Johnson they had searched her home and found nothing.
71. Plaintiff Johnson was transported back to her cell after the interrogation before being transferred to Central Bookings.
72. At Central Bookings, Plaintiff Johnson requested sanitary napkins and was eventually given toilet paper.

73. Eventually, Plaintiff Johnson appeared before the judge and was released after spending approximately 30 hours in custody.
74. Plaintiff Johnson appeared for approximately 8 court appearances before her criminal case was dismissed and sealed on or about February 2, 2022.
75. Plaintiff Johnson experienced an exorbitant amount of stress as a result of this incident and related court appearances.
76. This was Plaintiffs first and only ever arrest.
77. Plaintiff Johnson was hospitalized for five days because she was so stressed about testifying at the Grand Jury.
78. Plaintiff Johnson was eventually discharged with instructions to take her medication and to relax and destress.
79. Plaintiff Johnson's symptoms disappeared after her stress was reduced when her case was dismissed.
80. As a result of this incident, Plaintiff Johnson lost enrolment at her daycare and had to shut down the center.
81. Plaintiff Johnson also lost her tenant who left in October because his apartment was searched by Defendant Officers, and thus the tenant felt unsafe.
82. Plaintiff Johnson was unable to find a replacement tenant until June.
83. At no time relevant herein did Plaintiff Johnson commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff Johnson of committing a crime or violating the law in any way.
84. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff Johnson or from a location that was in Plaintiff Johnson's possession, custody, or control.
85. Nevertheless, Plaintiff Johnson was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.
86. Some of the police officer defendants observed the violation of Plaintiff Johnson's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff Johnson.

87. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

88. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

89. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

90. The conduct of defendants in approaching, stopping, and grabbing Plaintiffs were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

91. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

94. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

95. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

96. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

THIRD CAUSE OF ACTION
False Imprisonment

97. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

98. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs was conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

99. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

102. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

103. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

104. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

105. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

106. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

108. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

109. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

110. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

111. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

112. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to physical, emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

113. The Plaintiffs repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

114. The defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

115. Defendants failed to intervene to prevent the unlawful conduct described herein.

116. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, they was put in fear of their safety, and they was humiliated and subject to other physical constraints.

117. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

118. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

119. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

120. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

121. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

122. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

123. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

124. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

125. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

126. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

127. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

128. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

129. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: economic, emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

130. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

131. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

132. Defendants commenced and continued a criminal proceeding against Plaintiff.

133. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for each of the charges for which they were prosecuted.

134. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

NINTH CAUSE OF ACTION
Deliberate Indifference to Medical Need

135. Plaintiff Johnson repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

136. Defendants despite being aware that Plaintiff Johnson required medication refused to administer and properly procure immediate and adequate medical attention.

137. The delay in medical treatment to Plaintiff's injuries resulted in increased risk of a coil failure and bleeding in the brain that would have been prevented if Plaintiff Johnson received treatment in a timely manner.

138. As a direct and proximate result of such acts, defendants deprived Plaintiff Johnson of her rights under the laws of the State of New York.

139. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

140. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

141. As a result of the aforementioned conduct of defendants, Plaintiff Johnson sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION
Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

142. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

143. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

144. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
145. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing their detention for approximately 30 hours in total.
146. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION
**Individual Defendant Officer's Failure to Intervene in Violation
of Plaintiff's AC 8-802 Rights**

147. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
148. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
149. Defendant Officers had a duty to protect Plaintiffs from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
150. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.
151. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of his rights.
152. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

TWELFTH CAUSE OF ACTION
**City-Employer's Liability for Defendant Officer's Violation of
Plaintiff's AC 8-802 Rights**

153. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
154. Defendant Officers are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.
155. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.
156. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
157. The acts of Defendant Officers caused Plaintiffs to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
158. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiffs, before detaining plaintiffs and further causing his detention for approximately 2 days.
159. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

THIRTEENTH CAUSE OF ACTION

City-Employer’s Liability for Defendant Officer’s Failure to Intervene in Violation of Plaintiff’s AC 8-802 Rights

160. The Plaintiffs repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
161. Defendant Officers are “covered individuals” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.
162. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.
163. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.
164. Defendant Officers had a duty to protect Plaintiffs from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be

secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

165. The Defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

166. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiffs from violation of their rights.

167. By reason of the acts and omissions by Defendants described above, Plaintiffs have endured physical and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

168. Plaintiffs repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

169. Such conduct breached the protections guaranteed to plaintiffs by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

170. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiffs suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

171. As a result of the above tortious conduct, Plaintiffs were caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

172. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

173. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs FREDERICK THOMPSON and LATIFA JOHNSON demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
August 5, 2022

By: C. Cass Luskin
C. Cass Luskin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER JOSEPH ROSARIO, 67th PCT, 2820 Snyder Avenue, Brooklyn, New York
11226

ATTORNEY'S VERIFICATION

C. CASS LUSKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
August 5, 2022



C. CASS LUSKIN